

PROFESSIONAL SERVICES AGREEMENT

Project Name: **Waste Management & Hauling Software**

CONTRACT # _____

PROJECT NAME – **Waste Management & Hauling Software**

PROFESSIONAL SERVICES AGREEMENT

THIS AGREEMENT made and entered into this _____ day of _____, 2013, by and between the CITY OF CHEYENNE, WYOMING, hereinafter referred to as the “City” and DesertMicro, 10550 Deerwood Park Blvd Suite 650, Jacksonville FL 32256, hereinafter referred to as “Consultant.”

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. SCOPE OF WORK:

The Consultant agrees to provide services as described for the above mentioned project, in accordance with the Scope of Work described in Exhibit A, Technical Proposal, for Waste Management and Hauling Software which is attached to this agreement, incorporated by reference and expressly made a part hereof.

2. TIME OF PERFORMANCE:

Work shall be completed and submitted to the City in accordance with the project schedule given in Exhibit A, Technical Proposal, for Waste Management & Hauling Software which is attached to this agreement, incorporated by reference and expressly made a part hereof. Any extensions of the time limit set forth in Exhibit A must be agreed upon in writing by the parties.

3. CONSULTANT RESPONSIBILITY:

The Consultant shall be responsible for the professional quality, technical accuracy, timely completion of all services rendered by the Consultant and shall, without additional compensation, promptly remedy and correct any errors, omissions, or other deficiencies.

4. GIS MAPS AND DIGITAL DATA:

If the consultant uses any maps, coverages, images, or other digital data created by the *Cheyenne/Laramie County Cooperative Geographic Information System (CLCCGIS)* for the project specified in the Request for Proposal, the consultant agrees to return or destroy that information once the project is complete. Consultant agrees not to reuse or sell the GIS maps or data, which were provided as a professional courtesy and to minimize the cost of the project.

PROFESSIONAL SERVICES AGREEMENT

Project Name: **Waste Management & Hauling Software**

5. GIS DATA LIMITATION AND DISCLAIMED LIABILITY:

GIS data is collected primarily for use by the City of Cheyenne and Laramie County. Any unauthorized use of the data is at the risk of the user. The CLCCGIS cannot vouch for any unauthorized use.

6. COMPLIANCE WITH LAWS:

The Parties agree that they will perform their obligations as provided in this agreement in accordance with all applicable laws and ordinances.

7. DRUG-FREE WORKPLACE:

In compliance with the Drug Free Work Place Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers and other consultants under contract with City of Cheyenne, and their employees and Subcontractors, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the consultant while performing the duties and responsibilities of the contract. It is the responsibility of the consultant to familiarize himself with the requirements of this policy and to inform all his employees and sub-contractors of the requirements and ensure their compliance. If the consultant, his employees or sub-consultants are found in violation of this policy, the contract may be terminated.

8. INDEMNIFICATION / HOLD HARMLESS:

The Consultant agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the Consultant, or its employees or subcontractors in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

9. INSURANCE REQUIREMENTS:

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

PROFESSIONAL SERVICES AGREEMENT

Project Name: **Waste Management & Hauling Software**

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Business Automobile Insurance

Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,000,000 per accident for the entire term of the Agreement.

Workers' Compensation

Workers' Compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

(1) Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and

(2) In the event the Consultant's services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and

(3) Consultant shall maintain said "claims made" coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and

(4) In the event the Consultant or the insurer terminates "claims made" coverage

PROFESSIONAL SERVICES AGREEMENT

Project Name: **Waste Management & Hauling Software**

prior to the expiration of the periods provided in subparagraphs (1), (2), or (3) of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne as an **Additional Insured** by endorsement on its insurance policies, with the exception of worker's compensation and professional liability insurance, and shall provide the City with a copy of the endorsements.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverage's prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

In addition, Consultant shall provide the City with copies of insurance policies and /or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Consultant's obligation hereunder.

Any insurance company providing coverage under this agreement shall have a minimum A. M. Best rating of A- (excellent).

10. DUTIES, RESPONSIBILITIES AND LIMITATIONS OF AUTHORITY OF THE CONSULTANT.

The Consultant shall supervise and be accountable for all matters related to the project. This responsibility shall extend to supervision and responsibility for the actions of sub-contractors or consultants working for the Consultant.

11. MINORITY BUSINESS ENTERPRISES:

All parties to this agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award

PROFESSIONAL SERVICES AGREEMENT

Project Name: **Waste Management & Hauling Software**

and performance of this agreement on the grounds of age, race, color, disability, national origin or sex.

12. COMPENSATION:

In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City and the City agrees to pay Consultant according to the fee schedule given in Exhibit A, Technical Proposal, for Waste Management & Hauling Software for the City of Cheyenne, not to exceed \$210,953.80. The amounts of all such payments shall be based upon the Consultant's progress, verified by the City, in completing the work as described in Scope of Work Agreement for Waste Management & Hauling Software for the City of Cheyenne. Progress and final payment shall be made following acceptance of the work by the City; however, in no case more than 60 days following receipt of the invoice by the City. A portion of the payment may be held until any claims are resolved.

13. CITY REPRESENTATIVE:

Prior to commencement of work, the City will designate in writing, a City Representative who shall make, within the scope of his/her authority, all necessary decisions regarding the project. All requests for contract interpretations, field orders, contract modifications, change orders, and other clarification or instruction shall be directed to the City Representative.

14. INDEPENDENT CONTRACTOR:

The Consultant shall function as an independent contractor for the purposes of this agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this agreement. Nothing in this agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City of Cheyenne or to incur any obligation of any kind on the behalf of the City of Cheyenne.

15. TAXES:

The Consultant agrees to pay all taxes, excises, license fees, permit fees, bills, debts and obligations incurred by or in connection with its operations under this agreement.

16. APPROVAL OF PLANS:

The City's approval of drawings, designs, plans, specifications, reports, and incidental work or materials shall not in any way relieve the Consultant of responsibility for the technical accuracy of the work. The City's approval or acceptance of, or payment for,

PROFESSIONAL SERVICES AGREEMENT

Project Name: **Waste Management & Hauling Software**

any of the services shall not be construed to operate as a waiver of any of the City's rights under this agreement or any of its legal rights under statute or common law arising out of the performance of this agreement.

17. DEFAULT:

Each and every term and condition in this agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

18. REMEDIES:

In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non defaulting party declaring default may elect to:

- a. Terminate the Agreement and seek damages;
- b. Treat the agreement as continuing and require specific performance; or
- c. Avail itself of any other remedy at law or equity.

19. TERMINATION BY CITY:

The City Representative may, without cause, upon ten (10) days written notice to the Consultant, terminate this contract in whole or in part for the City's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected, and
- b. Deliver to the City Representative within five (5) days all data, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.

In the event of termination for convenience, the City will pay Consultant for accepted work done to date of termination.

20. ADDITIONAL REMEDIES OF CITY:

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant.

PROFESSIONAL SERVICES AGREEMENT

Project Name: **Waste Management & Hauling Software**

21. GOVERNMENTAL IMMUNITY.

The City of Cheyenne expressly reserves the right to invoke governmental immunity for any claim arising out of this agreement pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101 et seq.

22. ENTIRETY OF AGREEMENT:

This agreement consisting of seven (7) pages, and the submitted proposal contain the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter. Time is of the essence hereof.

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals the day and year first above written.

CITY OF CHEYENNE, WYOMING

By:_____

Richard L. Kaysen, MAYOR

(SEAL)

ATTEST:

Carol Intlekofer, City Clerk

Date:_____

CONSULTANT FIRM

By:_____

Title:_____

Date:_____

ADDRESS:_____
